

Under Part XXI of the Constitution of India, which deals with “Temporary, Transitional and Special Provisions,” the State of Jammu and Kashmir has been accorded special status under **Article 370**. Prior to 1965, head of the Executive was elected by the Legislative Assembly of Jammu and Kashmir but by an amendment to the State Constitution, this dissimilarity was removed. The Executive head was known as Governor in place of Sadar-e-Riyasat and was appointed by the President of India. Now, after its reorganisation in 2019, the two newly created Union territories are administered by the President through Lieutenant Governors appointed by him.

3. The Governor of a State is appointed by -

- (a) The Prime Minister
- (b) The Chief Justice of India
- (c) The President
- (d) The Chief Justice of the High Court
- (e) None of the above / more than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (c)

The Governor is the Executive head of a State appointed by the President. According to Article 157, any person who is a citizen of India and has completed the age of 35 years shall be eligible for appointment as a Governor of a State. Citizenship by birth is not a requirement. According to Article 158, the Governor shall not be a member of either House. Thus it is not necessary that the Governor must have the eligibility to be a Member of Lok Sabha. The Seventh Amendment Act, 1956 provided that a person is eligible to be appointed as Governor for two or more States.

4. Consider the following pairs of the Governors and the Indian States :

State	Governor
1. Rajasthan	Kalraj Mishra
2. Uttar Pradesh	Anandiben Patel
3. West Bengal	Satya Pal Malik
4. Gujarat	Phagu Chauhan

Which of the pairs given above is/are correctly matched?

- (a) 1 and 2 only
- (b) 3 and 4 only
- (c) 3 only
- (d) 1, 3 and 4 only
- (e) None of the above/More than one of the above

67th B.P.S.C. (Re-Exam) (Pre)-2021

Ans. (a)

The governor of West Bengal is Dr. C.V. Ananda Bose while the Governor of Gujarat is Acharya Devvrat The remaining pairs are correctly matched.

The State Legislature

1. The Governor of Uttar Pradesh directs the speaker of the legislative assembly to hold its session. In doing so he was exercising the rights which are vested in his office.

- (a) by Article 172
- (b) by Article 174
- (c) by Article 175
- (d) by Article 176

40th B.P.S.C. (Pre) 1995

Ans. (c)

According to the Article 175 (2) of the Constitution of India : The Governor may send messages to the house of the legislative of the state, whether with respect to a Bill then pending in the legislative or otherwise, and a house to which any message is so that sent shall with all convenient dispatch consider any matter required by the message to be taken into consideration.

2. As per Indian Constitution, Legislature of States consists

- (1) Legislative Council and Governor
- (2) Legislative Assembly and Legislative Council
- (3) Legislative Assembly and Governor
- (4) Governor, Legislative Assembly and Legislative Council where it exists

Select your answer out of the following codes-

- (a) Only 3
- (b) 2 and 3
- (c) 3 and 4
- (d) Only 4

41st B.P.S.C. (Pre) 1996

Ans. (c)

According to Article 168, the Legislature of a State consists of Governor, Legislative Assembly, and Legislative Council. Currently, Andhra Pradesh, Bihar, Maharashtra, Karnataka, Telangana and Uttar Pradesh have bicameral Legislature. Therefore option (3) is correct with respect to States which do not have a legislative council, whereas option (4) is correct with respect to the states which have Legislative Council.

3. Which is the Upper Chamber of State Legislatures in India?

- (a) Legislative Council
- (b) Legislative Assembly
- (c) Governor's Office
- (d) None of these

44th B.P.S.C. (Pre) 2000

Ans. (a)

According to **Article 168(2)**, where there are two Houses of the Legislature of a State, one shall be known as the Legislative Council and the other as the Legislative Assembly, and where there is only one House, it shall be known as the Legislative Assembly. In the case of two Houses, the Legislative Council would be the Upper House and the Legislative Assembly would be the Lower House.

4. In any State of India, Legislative Council can be created or can be abolished by –

- (a) The President on the recommendation of the Governor of the State
- (b) The Parliament
- (c) The Parliament as per Resolution passed by the Legislative Assembly of the State
- (d) The Governor on the recommendation of the Council of Ministers

40th B.P.S.C. (Pre) 1995

Ans. (c)

Just like the Council of States the Legislative Council is also a permanent body, hence is not subjected to dissolution. However unlike the Council of States, Article 169 of the Constitution of India has vested the power in Parliament for Abolition or creation of Legislative councils in states, if the Legislative Assembly of the state passes a resolution to that effect by a majority of the total membership of the Assembly and by a majority of not less than two third of the members of the Assembly present and voting.

5. Legislative Council exists in which of the following states?

- (1) Kerala
- (2) Himachal Pradesh
- (3) Delhi
- (4) Bihar

Select your answer from the following codes–

- (a) 1 and 2
- (b) 1 and 3
- (c) 2 and 3
- (d) only 4

40th B.P.S.C. (Pre) 1995

Ans. (d)

In the given options. Only Bihar has bicameral legislature.

6. Which of the following Articles of Indian Constitution consists the provision of the election of Legislative Assemblies of States–

- (a) Article 170
- (b) Article 176
- (c) Article 178
- (d) None of the above

40th B.P.S.C. (Pre) 1995

Ans. (a)

According to Article 170(1), subject to the provisions of Article 333, the Legislative Assembly of each State shall consist of not more than five hundred, and not less than sixty members chosen by direct election from territorial constituencies in the State. Article 176 is related to special address by the Governor and Article 178 provisions for the Speaker and Deputy Speaker of the Legislative Assembly.

7. Which one of the following Indian States has the largest number of members in its State Legislature?

- (a) Arunachal Pradesh
- (b) Himachal Pradesh
- (c) Manipur
- (d) Meghalaya
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (b)

States	Seats in Legislative Assembly
Arunachal Pradesh	60
Himachal Pradesh	68
Manipur	60
Meghalaya	60
So, correct answer will be (b).	

8. If the Speaker of Legislative Assembly of a State wants to resign, he will give his resignation to –

- (a) Chief Minister
- (b) Governor
- (c) Deputy Speaker
- (d) President of India

40th B.P.S.C. (Pre) 1995

Ans. (c)

According to Article 179(b), if the Speaker of Legislative Assembly of a State wants to resign, he/she will give his resignation to the Deputy Speaker of that State's Legislative Assembly.

9. The members of a State Legislative Council are not chosen by which of the following categories of persons?

- (a) Members of the local bodies/panchayats
- (b) Teachers
- (c) Graduates
- (d) Industrialists
- (e) None of the above/More than one of the above.

67th B.P.S.C. (Pre) 2021

Ans. (d)

Composition of the legislative council is mentioned under the provisions of Article 171 (3) of the constitution. In which one third shall be elected by local bodies, one-twelfth shall be elected by electorates consisting of persons residing in the slate who have been for at least three years graduates of